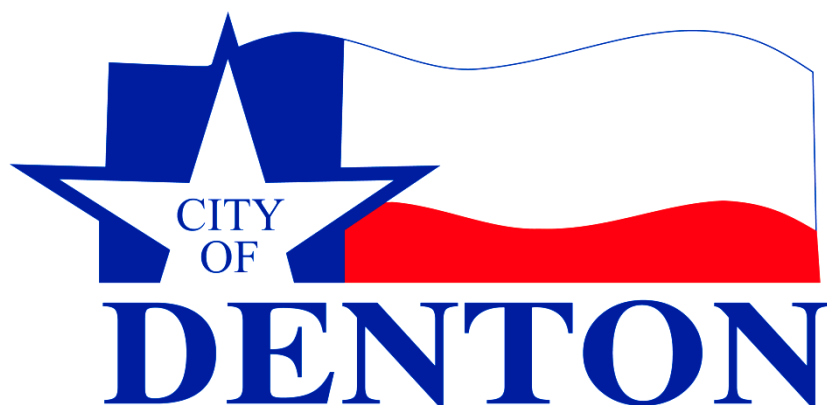




**Materials Management Department  
901-B Texas Street  
Denton, Texas 76209**

**REQUEST FOR PROPOSALS  
RFP #6922**

**The City of Denton is seeking the best value solution for the:  
INDIVIDUAL AND AGGREGATE STOP LOSS INSURANCE**

**Issue Date: October 26th, 2018  
Response due Date and Time (Central Time):  
Tuesday, November 13, 2018, 11:00 A.M. C.S.T**

**The City highly recommends that respondents do not wait until minutes before the due date and time to email a submission.**

**It can take significant time for the submissions to reach the City.**

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| Exhibit 1 | Pricing Sheet                                                    |
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## 1. INTRODUCTION

In accordance with the provisions of Texas Local Government Code, Chapter 252 and 271, the City of Denton (the City) is requesting submissions to contract with an individual or business with considerable experience in providing goods or services of this solicitation. The responses and the cost solutions shall be submitted to the City of Denton in a sealed submission.

The awarded individual or business shall possess a proven track record of using innovative approaches to providing goods and services that represent the best value to their clients. The awarded individual or business shall have the ability to accomplish all aspects of the requested services. The selected individual or firm should be able to provide innovative methods to deal with municipal challenges, and cost effective solutions.

A firm may submit a solicitation response for one or more of the categories of product or services requested in this solicitation.

## 2. COMMODITY OR SERVICE DESCRIPTION

The City is seeking a term contract for the supply of Individual & Aggregate Stop Loss Insurance to be purchased as needed over the contract term.

**The products and services shall be accomplished per all exhibits identified in the table of contents.**

## 3. MINIMUM QUALIFICATIONS

The following minimum requirements must be demonstrated in order for the submission to be **considered responsive** to the City of Denton. Any submission received, which is determined to not meet these mandatory requirements shall be immediately disqualified and rejected as non-responsive.

- Three (3) years of experience providing similar products or services.
- Three (3) references from governmental entities for the products or services requested. The City prefers references from municipalities of similar size.
- The responding individual or business must be registered in the State of Texas, or the County of Denton, to provide the products or services required in the solicitation, and the individual or business must have all licensure required by the State to provide any services required under this contract.

To learn how to obtain information about filing with the State of Texas, or obtaining copies or certificates from the Secretary of State visit Webpage: <http://www.sos.state.tx.us/corp/copies.shtml>; Phone 512-463-5578; or email [corpcert@sos.state.tx.us](mailto:corpcert@sos.state.tx.us).

- Submittal documents including a cover sheet, Solicitation Checklist, Attachments A -F and Exhibit 1, per the method described in SUBMITTAL INSTRUCTIONS.

#### **4. SCHEDULE OF EVENTS**

The City of Denton reserves the right to change the dates indicated below:

Solicitation Schedule:

|                                       |                            |
|---------------------------------------|----------------------------|
| Issue Date:                           | 10/26/2018                 |
| Deadline for Submission of Questions: | 11/02/2018 at 11:00 AM CST |
| Deadline for Submission of Responses: | 11/13/2018 at 11:00 AM CST |

The City of Denton is using the solicitation 'Issue Date' as noted in the Schedule of Events above as the official 30 day notification requirement for an interview with a firm.

#### **5. CONTRACT TERM**

It is the intention of the City of Denton to award a contract for a three (3) year period with the option to renew an additional two (2) years.

The Contract shall commence upon the issuance of a Notice of Award/Issuance of Purchase Order by the City of Denton. At the sole option of the City of Denton, the Contract may be further extended as needed, not to exceed a total of six (6) months.

#### **6. PRICING**

##### **Firm Price**

Pricing and discounts submitted are firm for the initial one-year period specified in the solicitation. Price decreases are allowed at any time. Price increases shall only be considered as stipulated below in "PRICE ADJUSTMENTS".

##### **Price Decreases/Discount Increases**

Respondents are required to immediately implement any price decrease or discount increase that may become available. The City of Denton must be notified in writing for updating the contract.

#### **7. PRICE ADJUSTMENTS**

Prices quoted for the commodities or services described in the solicitation must be firm for a period of one year from date of contract award. Any request for price adjustment must be based on the, U.S Department of Labor, Bureau of Labor Statistics, Producer Price Index (PPI). The price will be increased or decreased based upon the annual percentage change in the PPI. The maximum escalation will not exceed +/- 8% for any individual year. The escalation will be determined annually at the renewal date. Should the PPI change exceed a minimum threshold value of +/-1%, then the stated eligible bid prices shall be adjusted in accordance with the PPI change not to exceed the 8% limit per year. The supplier should provide documentation as percentage of each cost associated with the unit prices quoted for consideration.

Request must be submitted in writing with supporting evidence for need of such increase to the Purchasing Manager at least 60 days prior to contract expiration of each year. Respondent must also provide supporting documentation as justification for the request.

Upon receipt of such request, the City of Denton reserves the right to either: accept the escalation as competitive with the general market price at the time, and become effective upon the renewal date of the contract award or reject the increases within 30 calendar days after receipt of a properly submitted request. If a properly submitted increase is rejected, the Contractor may request cancellation of such items from the Contract by giving the City of Denton written notice. Cancellation will not go into effect for 15 calendar days after a determination has been issued. Pre-price increase prices must be honored on orders dated up to the official date of the City of Denton approval and/or cancellation.

The request can be sent by e-mail to: [purchasing@cityofdenton.com](mailto:purchasing@cityofdenton.com) noting the solicitation number.

The City of Denton reserves the right to accept, reject, or negotiate the proposed price changes.

## **8. COOPERATIVE PURCHASING / PIGGYBACK OPTION**

The contract resulting from this solicitation will be available for use by **all governmental entities**, providing there is no conflict with any applicable statutes, rules, policies, or procedures. The governmental entities will have the option to use the pricing as agreed to within the resulting contract. Governmental entities will issue their internal purchase orders directly to the contractor(s).

## **9. ADDENDA**

Respondents are required to acknowledge addenda with their submission. Respondents will be responsible for monitoring the City of Denton Purchasing website at [www.dentonpurchasing.com](http://www.dentonpurchasing.com) to ensure they have downloaded and signed all addenda required for submission with their submission. Respondents should acknowledge each individual addendum on Attachment F.

## **10. BUSINESS OVERVIEW**

Respondent shall complete the Business Overview Questionnaire as applicable per Attachment A.

## **11. EXCEPTIONS**

The Request for Proposal (RFP) process allows for negotiation of the terms and conditions of this proposal. The respondent shall note any exceptions to the solicitation document, on Attachment B. The exceptions will be reviewed to ensure they meet the minimum specifications and requirements and will be ranked in accordance with the evaluation criteria. The City reserves the right to accept, reject or negotiate the exceptions provided.

Respondents shall itemize all exceptions on Attachment B. Additional pages may be added as necessary. **Do not mark or change the text of the solicitation document, exceptions shall be noted only on Attachment B.**

If no exceptions are taken, the respondent shall sign and return Attachment B in the appropriate signature block.

## 12. DISCLOSURES

The individual or business must disclose any business relationship that would have an effect, of a conflict of interest. A conflict of interest statement must be signed as part of the contract negotiated with the awardee(s). (Attachment D)

## 13. ACKNOWLEDGEMENT

Submit a signed acknowledgement by authorized agent of the responding firm (Attachment E).

## 14. SUBMITTAL INSTRUCTIONS

**The City of Denton will accept electronic or hard copy submittals until the date and time on the cover sheet of this solicitation. Any submission received after the date and/or hour set for solicitation opening will be returned unopened.**

Electronic submittals may be emailed to [ebids@cityofdenton.com](mailto:ebids@cityofdenton.com) with the solicitation number and name in the subject line. Please consolidate attachments as much as possible, and do not exceed 35MB total for attachments. Emails received by the City will remain unopened until after the due date and time. Only authorized Materials Management Staff will have access to the e-bid email inbox. Please do not email the buyer directly to ensure security of the proposal. **Electronic proposals must be received by the City before the due date and time. The date and time used by the City shall be the official time. It is highly recommended that respondents do not wait until minutes before the due date and time to email their submission. It can take significant time for the email to reach the City.**

Hard copy submissions may be hand delivered (by firm or express courier) to the address listed below:

City of Denton  
Materials Management

### **RFP 6922 INDIVIDUAL AND AGGREGATE STOP LOSS INSURANCE**

901B Texas Street  
Denton, TX 76209

The City of Denton reserves the right to accept or reject in part or in whole any submission, and to waive technicalities of the submission, in the best interest of obtaining best value for the City.

Each respondent is responsible for taking the necessary steps to ensure their submission is received by the date and time noted herein. The City is not responsible for missing, lost or late mail or any mail or email delays, internal or external, that may result in the submission arriving after the set time.

### **a. Submission Format**

Respondents shall provide detailed information to allow the City to properly evaluate the submission. The City requests the following format be used:

1. Hard copy submissions shall be bound only utilizing a staple or binder clip. Do not submit responses in a binder or file folder.
2. Submission shall be no more than 200 pages in length or 35 MB is file size
3. Utilize tabs to identify exhibits and attachments
4. The submission shall be in the following order:
  - a) Coversheet – including Solicitation number and name, firm name, address, contact name, phone, fax, website and email address.
  - b) Pricing Sheet – Exhibit 1
  - c) Completed Solicitation Checklist
  - d) Attachment A-Business Questionnaire
  - e) Attachment B-Exception Form
  - f) Attachment C-References
  - g) Attachment D-Conflict of Interest Questionnaire Form
  - h) Attachment E-Signed Acknowledgement form
  - i) Appendices may be used for additional documentation or clarification at the respondent's option.
5. Hard Copy submittals shall include one (1) original signed by an officer authorized to bind the firm, and three (3) copies of the completed response.
6. Submit response, before the published due date. Hard copy submittals must be in a sealed envelope with the solicitation number and name.

## **b. Electronic Submission Requirements**

**All respondents shall submit their pricing sheet (Exhibit 1) in Microsoft Excel format for quick tabulation of results.** The electronic pricing sheet must be received regardless of the method chosen by the proposer to submit (hard copy or electronic). If a respondent is only submitting a hard copy, they shall provide a flash drive, containing a complete copy of the response to this solicitation, or submit electronically to ebids@cityofdenton.com. Emails to the City should include the RFP number and name in the subject line, consolidate attachments as much as possible, and not exceed 35MB total. Please do not email the buyer directly to ensure security of the proposal.

## **15. EVALUATION PROCEDURES**

Selection of a firm(s) to provide the aforementioned materials and services shall be in accordance with the City of Denton Purchasing Policies and procedures and the State of Texas Local Government Code 252.043. The City of Denton shall open all submissions and evaluate each respondent in accordance to the below criteria:

**Step 1:** The City of Denton will evaluate the submission in accordance with the selection criteria and will rank the firms on the basis of the submittals. The City of Denton, reserves the right to consider information obtained in addition to the data submitted in the response. The selection criterion is listed below:

- a) Compliance with specifications, quality, reliability, characteristics to meet stated or implied needs (FACTOR 10%)**

Compliance with the stated specification(s) coupled with the quality and reliability of the goods and services such as fitness for use that meets or exceeds Owner's expectations and the characteristics of the product or service that bear on its ability to meet the stated/implied needs.

**b) Indicators of Probable Performance under contract (FACTOR: 30%).**

Indicators of probable performance under the contract to include: past vendor performance, financial resources and ability to perform, experience or demonstrated capability and responsibility, references, and the vendor's ability to provide reliable maintenance agreements and support.

**c) Cost of Services, Lasers, and Multi-Year Rate Guarantees, (FACTOR: 60%).**

The total cost of the proposal including, but not limited to, the estimated Individual and Aggregate Stop Loss rates, attachment points, claims corridor, and proposed lasers (number of lasers and threshold).

The total possible score of the submissions shall be scored and weighted as indicated above, Step 1 items a-c. Based on the outcome of the computations performed, each submission will be assigned a raw score. The assigned weight will then be applied to these scores to calculate an overall score for each submission for completion of the final scoring process.

**Step 2:** After the final ranking of the submissions and determination of Firm(s) that provide a best value to the City and are within the competitive range, provided the City of Denton elects to proceed without oral discussions, the City will immediately proceed to negotiate final pricing, terms and conditions with the **highest ranked Firm or Firms**. The City of Denton may elect to conduct oral discussions, request clarifications, and presentations concerning the project approach and ability to furnish the requirements, as part of the negotiation process. The City may elect to utilize a Best and Final negotiation phase to determine the Firm that provides the overall best value to the City.

**Step 3:** Upon selection of the submission or Best and Final Offer that represents the "best value", a written recommendation will be presented to the appropriate approving authority for the City of Denton (the City Manager, Public Utility Board, City Council) requesting authorization to proceed with contract execution for the proposed services.

In accordance with Local Government Code 252.049, trade secrets and confidential information in competitive sealed proposals are not open for public inspection. All submissions shall be opened in a manner that avoids disclosure of the contents to competing respondents and keeps the responses secret during negotiations. A public opening will not be conducted with this process.

After the contract has been awarded all submissions will be open for public inspection, and the unsuccessful respondent(s) may request a debriefing regarding their submittal. Please contact the City of Denton Materials Management staff to document the request for a debriefing. A meeting with the City of Denton Materials Management Staff and the using Division will be scheduled within a reasonable time.



## **16. CONTACT BETWEEN RESPONDENT AND THE CITY**

Respondents shall direct all inquiries and communications concerning this solicitation to the Point of Contact(s) listed below:

Suzzen Stroman  
Buyer  
901-B Texas Street  
Denton, TX 76209  
(940) 349-7100  
Fax: (940) 293-1837  
[Suzzen.stroman@cityofdenton.com](mailto:Suzzen.stroman@cityofdenton.com)

\*\*\* Please do not email the buyer the final proposal unless requested after the due date and time published on the coversheet. A proposal should be emailed to [ebids@cityofdenton.com](mailto:ebids@cityofdenton.com)

### SOLICITATION CHECKLIST

| Check when Completed | Task to be Completed by Respondent                                                                                                                                                                                                                                                                                                      |
|----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                      | Exhibit 1 – Pricing sheet (must be excel)                                                                                                                                                                                                                                                                                               |
|                      | Review Exhibit 2 – General Provisions and Terms and Conditions                                                                                                                                                                                                                                                                          |
|                      | Review Exhibit 3 – Scope of Work/Technical Specifications                                                                                                                                                                                                                                                                               |
|                      | Cover sheet                                                                                                                                                                                                                                                                                                                             |
|                      | Solicitation number                                                                                                                                                                                                                                                                                                                     |
|                      | Solicitation name                                                                                                                                                                                                                                                                                                                       |
|                      | Firm name                                                                                                                                                                                                                                                                                                                               |
|                      | Firm address                                                                                                                                                                                                                                                                                                                            |
|                      | Contact name                                                                                                                                                                                                                                                                                                                            |
|                      | Contact phone                                                                                                                                                                                                                                                                                                                           |
|                      | Contact fax                                                                                                                                                                                                                                                                                                                             |
|                      | Website address                                                                                                                                                                                                                                                                                                                         |
|                      | Contact email address                                                                                                                                                                                                                                                                                                                   |
|                      | Solicitation Checklist                                                                                                                                                                                                                                                                                                                  |
|                      | Attachment A- Business Overview Questionnaire                                                                                                                                                                                                                                                                                           |
|                      | Document how firm meets minimum qualifications (Section 3)                                                                                                                                                                                                                                                                              |
|                      | Detail to support evaluation criteria                                                                                                                                                                                                                                                                                                   |
|                      | Attachment B-Exception Form                                                                                                                                                                                                                                                                                                             |
|                      | Attachment C-Reference Form                                                                                                                                                                                                                                                                                                             |
|                      | Attachment D-Conflict of Interest Questionnaire Form – <b>with signature</b>                                                                                                                                                                                                                                                            |
|                      | Attachment E-Acknowledgment                                                                                                                                                                                                                                                                                                             |
|                      | Acknowledgment of Addenda                                                                                                                                                                                                                                                                                                               |
|                      | Submission signed by authorized officer, in the order specified below                                                                                                                                                                                                                                                                   |
|                      | <b>Hard Copy Submission:</b> If submitting a hard copy, the City requires one (1) original and three (3) copies, with the pricing sheet submitted electronically <b>in excel</b> or emailed <b>in excel</b> to <a href="mailto:Ebids@cityofdenton.com">Ebids@cityofdenton.com</a> with the Solicitation # and name in the subject line. |
|                      | <b>Electronic Submission:</b> If submitting an electronic proposal only, email to <a href="mailto:Ebids@cityofdenton.com">Ebids@cityofdenton.com</a> with the Solicitation # and name in the subject line. The pricing sheet (Exhibit 1) must be <b>in excel</b> format.                                                                |

**Submit response, with tabs marking each section, in the following order:**

| Order for Submission | Document                                       |
|----------------------|------------------------------------------------|
| 1                    | Cover Sheet                                    |
| 2                    | Pricing Sheet - Exhibit 1                      |
| 3                    | Solicitation Checklist                         |
| 4                    | Attachment A - Business Overview Questionnaire |
| 5                    | Attachment B - Exception Form                  |
| 7                    | Attachment C - Reference Form                  |
| 8                    | Attachment D - Conflict of Questionnaire Form  |
| 9                    | Attachment E - Acknowledgment                  |

## ATTACHMENT A-BUSINESS OVERVIEW QUESTIONNAIRE AND FORMS

1. Contract Information (for formal contracting purposes):  
*The following information will be used to write a contract, should your firm be selected for award.*
  - Firm's Legal Name:
  - Address:
  - Agent Authorized to sign contract (Name):
  - Agent's email address:
2. Subsidiary of:
3. Check the appropriate Organization Class and provide proof of registration as indicated below:
  - \_\_\_\_\_ Sole Proprietorship – County Assumed Name Certificate
  - \_\_\_\_\_ General Partnership – County Assumed Name Certificate
  - \_\_\_\_\_ Corporation – Secretary of State Certificate of Registration
  - \_\_\_\_\_ Limited Liability Companies (LLC) – Secretary of State Certificate of Registration
  - \_\_\_\_\_ Limited Partnership (LP) – Secretary of State Certificate of Registration
  - \_\_\_\_\_ Limited Liability Partnership (LLP) – Secretary of State Certificate of Registration
  - \_\_\_\_\_ Foreign Entity – Secretary of State Certificate of Registration
4. Tax Payer ID#:
5. Date Established:
6. Historically Underutilized Business: Yes or No
7. Does your company have an established physical presence in the State of Texas, or the City of Denton? Yes or No, in which?
8. Please provide a detailed listing of all products and/or services that your company provides.
9. Has your company filed or been named in any litigation involving your company and the Owner on a contract within the last five years under your current company name or any other company name? If so provide details of the issues and resolution if available. Include lawsuits

City of Denton  
RFP for Individual & Aggregate Stop Loss Insurance

where Owner was involved. (Notice: Failure to disclose this information during proposal submission, and later discovered, may result in contract termination at the Owner's option.)

10. Have you ever defaulted on or failed to complete a contract under your current company name or any other company name? If so, where and why? Give name and telephone number of Owner.
11. Have you ever had a contract terminated by the Owner? If so, where and why? Give name and telephone number (s) of Owner (s).
12. Has your company implemented an Employee Health and Safety Program compliant with 29 CFR 1910 "General Industry Standards" and/or 29 CFR 1926 "General Construction Standards" as they apply to your Company's customary activities?  
[http://www.osha.gov/pls/oshaweb/owasrch.search\\_form?p\\_doc\\_type=STANDARDS&p\\_toc\\_level=1&p\\_keyvalue=1926](http://www.osha.gov/pls/oshaweb/owasrch.search_form?p_doc_type=STANDARDS&p_toc_level=1&p_keyvalue=1926)
13. Resident/Non-Resident Bidder Determination:  
Texas Government Code Section 2252.002: Non-resident bidders. Texas law prohibits cities and other governmental units from awarding contracts to a non-resident firm unless the amount of such a bid is lower than the lowest bid by a Texas resident by the amount the Texas resident would be required to underbid in the non-resident bidders' state. In order to make this determination, please provide the name, address and phone number of:
  - a. Responding firms principle place of business:
  - b. Company's majority owner principle place of business:
  - c. Ultimate Parent Company's principle place of business:

City of Denton  
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14. **Provide details on how firm meets the minimum qualifications stated in this Main document Section 3.**

- a. The details must be completed on this form, and shall not point to another document in the respondent's proposal.
- b. Sign below and return form with final submission.

I certify that our firm meets the minimum qualifications as stated in this Main document, section 3.

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Company

\_\_\_\_\_  
Date

## ATTACHMENT B-SUBMISSION EXCEPTIONS/CLARIFICATIONS

**Any** exceptions or clarifications taken to this solicitation (**including Exhibit 2, the General Provisions and Terms and Conditions**) must be itemized on the lines below. Additional pages may be added as needed. If there are no exceptions or clarifications, please sign where indicated at the bottom of the page.

| Item # | Description |
|--------|-------------|
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
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| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |
| _____  | _____       |

The above exceptions and clarifications (and any additional pages identified) are the ONLY exceptions/clarifications to the specifications, General Provisions and Terms and Conditions in Exhibit 2, and sample contract to this solicitation. I understand that the City may not accept additional exceptions produced after final submission of this proposal.

|           |         |       |
|-----------|---------|-------|
| _____     | _____   | _____ |
| Signature | Company | Date  |

**No Exceptions are taken to this solicitation or the General Provisions and Terms and Conditions in Exhibit 2.**

|           |         |       |
|-----------|---------|-------|
| _____     | _____   | _____ |
| Signature | Company | Date  |

## ATTACHMENT C-REFERENCES

Please list three (3) Government references, **other than the City of Denton**, who can verify the quality of service your company provides. The City prefers customers of similar size and scope of work to this solicitation.

### REFERENCE ONE

GOVERNMENT/COMPANY NAME:

LOCATION: \_\_\_\_\_

CONTACT PERSON AND TITLE: \_\_\_\_\_

TELEPHONE NUMBER: \_\_\_\_\_

SCOPE OF WORK: \_\_\_\_\_

CONTRACT PERIOD: \_\_\_\_\_

### REFERENCE TWO

GOVERNMENT/COMPANY NAME:

LOCATION: \_\_\_\_\_

CONTACT PERSON AND TITLE: \_\_\_\_\_

TELEPHONE NUMBER: \_\_\_\_\_

SCOPE OF WORK: \_\_\_\_\_

CONTRACT PERIOD: \_\_\_\_\_

### REFERENCE THREE

GOVERNMENT/COMPANY NAME:

LOCATION: \_\_\_\_\_

CONTACT PERSON AND TITLE: \_\_\_\_\_

TELEPHONE NUMBER: \_\_\_\_\_

SCOPE OF WORK: \_\_\_\_\_

CONTRACT PERIOD: \_\_\_\_\_

## ATTACHMENT D-CONFLICT OF INTEREST QUESTIONNAIRE

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | <b>CONFLICT OF INTEREST QUESTIONNAIRE -</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                               | <b>FORM CIQ</b> |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|-----------------|
| <b>For vendor or other person doing business with local governmental entity</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
| <b>This questionnaire reflects changes made to the law by H.B. 23, 84th Leg., Regular Session.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
| <p>This questionnaire is being filed in accordance with Chapter 176, Local Government Code, by a vendor who has a business relationship as defined by Section 176.001(1-a) with a local governmental entity and the vendor meets requirements under Section 176.006(a).</p> <p>By law this questionnaire must be filed with the records administrator of the local government entity not later than the 7th business day after the date the vendor becomes aware of facts that require the statement to be filed. See Section 176.006(a-1), Local Government Code.</p> <p>A vendor commits an offense if the vendor knowingly violates Section 176.006, Local Government Code. An offense under this section is a misdemeanor.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
| <b>1</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <b>Name of vendor who has a business relationship with local governmental entity.</b>                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                               |                 |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
| <b>2</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <div style="display: flex; align-items: center;"><input style="margin-right: 10px;" type="checkbox"/> <b>Check this box if you are filing an update to a previously filed questionnaire.</b></div> <p style="margin-top: 10px;">(The law requires that you file an updated completed questionnaire with the appropriate filing authority not later than the 7<sup>th</sup> business day after the date on which you became aware that the originally filed questionnaire was incomplete or inaccurate.)</p> |                                                                                               |                 |
| <b>3</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <b>Name of local government officer about whom the information in this section is being disclosed.</b>                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                               |                 |
| <div style="text-align: center; margin-bottom: 20px;"><div style="border-bottom: 1px solid black; width: 200px; margin: 0 auto;"></div><p>Name of Officer</p></div> <p>This section, (item 3 including subparts A, B, C &amp; D), must be completed for each officer with whom the vendor has an employment or other business relationship as defined by Section 176.001(1-a), Local Government Code. Attach additional pages to this Form CIQ as necessary.</p> <p>A. Is the local government officer named in this section receiving or likely to receive taxable income, other than investment income, from the vendor?</p> <div style="display: flex; justify-content: space-around; margin-top: 5px;"><div><input type="checkbox"/> Yes</div><div><input type="checkbox"/> No</div></div> <p>B. Is the vendor receiving or likely to receive taxable income, other than investment income, from or at the direction of the local government officer named in this section AND the taxable income is not received from the local governmental entity?</p> <div style="display: flex; justify-content: space-around; margin-top: 5px;"><div><input type="checkbox"/> Yes</div><div><input type="checkbox"/> No</div></div> <p>C. Is the filer of this questionnaire employed by a corporation or other business entity with respect to which the local government officer serves as an officer or director, or holds an ownership of one percent or more?</p> <div style="display: flex; justify-content: space-around; margin-top: 5px;"><div><input type="checkbox"/> Yes</div><div><input type="checkbox"/> No</div></div> <p>D. Describe each employment or business and family relationship with the local government officer named in this section.</p> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
| <b>4</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <div style="display: flex; align-items: center;"><input style="margin-right: 10px;" type="checkbox"/> <b>I have no Conflict of Interest to disclose.</b></div>                                                                                                                                                                                                                                                                                                                                              |                                                                                               |                 |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
| <b>5</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                               |                 |
| <div style="border-bottom: 1px solid black; width: 300px; margin: 0 auto;"></div> <p>Signature of vendor doing business with the governmental entity</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | <div style="border-bottom: 1px solid black; width: 200px; margin: 0 auto;"></div> <p>Date</p> |                 |



## ATTACHMENT E-ACKNOWLEDGEMENT

The undersigned agrees this submission becomes the property of the City of Denton after the official opening.

The undersigned affirms he has familiarized himself with the specification, drawings, exhibits and other documents; the local conditions under which the work is to be performed; satisfied himself of the conditions of delivery, handling and storage of materials and equipment; and all other matters that will be required for the work before submitting a response.

The undersigned agrees, if this submission is accepted, to furnish any and all items/services upon which prices are offered, at the price(s) and upon the terms and conditions contained in the specification. The period for acceptance of this submission will be 120 calendar days unless a different period is noted.

The undersigned affirms that they are duly authorized to execute this contract, that this submission has not been prepared in collusion with any other respondent, nor any employee of the City of Denton, and that the contents of this submission have not been communicated to any other respondent or to any employee of the City of Denton prior to the acceptance of this submission.

Respondent hereby assigns to the City any and all claims for overcharges associated with this contract which arise under the antitrust laws of the United States, 15 USCA Section 1 et seq., and which arise under the antitrust laws of the State of Texas, Tex. Bus. & Com. Code, Section 15.01, et seq.

The undersigned affirms that they have read and do understand the specifications, all exhibits and attachments contained in this solicitation package.

The undersigned agrees that the solicitation package posted on the website are the official specifications and shall not alter the electronic copy of the specifications and/or pricing sheet (Exhibit 1), without clearly identifying changes.

The undersigned understands they will be responsible for monitoring the City of Denton Purchasing Website at: <http://www.cityofdenton.com/index.aspx?page=397> to ensure they have downloaded and signed all addendum(s) required for submission with their response.

I certify that I have made no willful misrepresentations in this submission, nor have I withheld information in my statements and answers to questions. I am aware that the information given by me in this submission will be investigated, with my full permission, and that any misrepresentations or omissions may cause my submission to be rejected.

Acknowledge receipt of following addenda to the solicitation:

|                           |                |
|---------------------------|----------------|
| Addendum No 1 Dated _____ | Received _____ |
| Addendum No 2 Dated _____ | Received _____ |
| Addendum No 3 Dated _____ | Received _____ |

**NAME AND ADDRESS OF COMPANY:**

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Tel. No. \_\_\_\_\_

Email. \_\_\_\_\_

**AUTHORIZED REPRESENTATIVE:**

Signature \_\_\_\_\_

Date \_\_\_\_\_

Name \_\_\_\_\_

Title \_\_\_\_\_

Fax No. \_\_\_\_\_